

- ii. the Central Government may, by rules, specify the railway servants to whom periods of rest on scales less than those laid down under sub-section (1) may be granted and the periods thereof.

(3) subject to such rules as may be made in this behalf, if the prescribed authority is of the opinion that such circumstances as are referred to in sub-section (4) of Sec. 132 are present. It may exempt any railway servant from the provision of sub-section (1) or Cl. (i) of sub-section (2) :

Provided that a railway servant so exempted shall, in such circumstances as may be prescribed, be granted compensatory periods of rest for the periods he has forgone.

Comments

Section 132 provide for limitation of hours of work and Sec. 133 periodical rest for various category of railway servants.

134. Railway servant to remain on duty. – Nothing in this chapter or the rules made there under shall, where due provision has been made for the relief of a railway servant, authorise him to leave his duty until he has been relieved.

Comments

Section 134 lays down that a railway servant shall remain on duty until he is relieved.

135. Supervisors of railway labour. – (1) Subject to such rules as may be made in this behalf, the Central Government may appoint supervisors of railway labour.

(2) The duties of supervisors of railway labour shall be –

- i. to inspect railways in order to determine whether the provisions of this chapter or of the rules made there under are duly observed; and
- ii. to perform such other functions as may be prescribed.

(3) A supervisor of railway labour shall be deemed to be a Commissioner for the purposes of Secs. 7 and 9.

Comments

Section 135 deals with appointment of the supervisors and their duties.

136. Power to make rules in respect of matters in this chapter. –

- (1) The Central Government may, by notification, make rules to carry out the purposes of this chapter.
- (2) In particular, and without prejudice to the generally of the foregoing power, such rules may be provided for all or any of the following matters, namely;
 - (a) the authorities who may declare the employment of any railway servant essentially intermittent or intensive;
 - (b) the appeals against any such declaration and the manner in which, and the conditions subject to which any such appeal may be filed and heard;
 - (c) the categories of staff that may be specified under sub-clauses (iv) and (v) of Cl. © of sec. 130;
 - (d) the authorities by whom exemptions under sub-section (4) of sec. 132 or sub-section (3) of sec. 133 may be made;
 - (e) the delegation of power by the authorities referred to in Cl. (d);
 - (f) the railway servants to whom Cl. (ii) of Sub-section (2) of Sec. 133 apply and the periods of rest to be granted to them;
 - (g) the appointment of supervisors of railway labour and their functions.

Section 136 empowers the Central Government to make rules for carrying out the purposes of Chapter XIV. The matter in respect of which rules are to be made by the central Government are enumerated in sub-section (2).

CHAPTER XV

Penalties and Offences

137. Fraudulently traveling or attempting to travel without proper pass or ticket. – (1) If any person, with intend to defraud a railway administration, -

- (a) enter or remains in any carriage on a railway or travels in a train in contravention of Sec.55, or